

24STCV17156 24STCV17156

County: los-angeles

Division: Civil Law and Motion

Department: 513

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Case Number: 24STCV17156 Hearing Date: June 30, 2026 Dept: 513

Superior Court of California

County of Los Angeles – Central District

Department

513

LA FORWARD INSTITUTE

, et al.;

Plaintiff,

vs.

CITY OF LOS ANGELES

, et al.;

Defendants.

Case

No.:

24STCV17156

Hearing

Date:

June
30, 2026

Time:

10:00 a.m.

[tentative]

Order RE:

PLAINTIFFS' motion FOR APPOINTMENT OF
DISCOVERY REFEREE

MOVING PARTY: Plaintiffs LA Forward Institute,
Sylvia Aroth, and Gary Williams

RESPONDING PARTY: Defendant City of Los Angeles

Motion for Appointment of Discovery Referee

The court
considered the moving, opposition, and reply papers filed in connection with
this motion.

DISCUSSION

Plaintiffs LA Forward Institute, Sylvia
Aroth, and Gary Williams ("Plaintiffs") move, pursuant to Code of Civil
Procedure section 639, subdivision (a)(5), for an order appointing Hon. Monica
Bachner (Ret.) as a pro bono discovery referee for all discovery purposes in
this action, including the discovery motions that are currently pending, and to
report findings and make recommendations thereon.

When the parties do not consent to the appointment of a discovery
referee, the court may appoint a referee "[w]hen the court in any pending
action determines that it is necessary for the court to appoint a referee to
hear and determine any and all discovery motions and disputes relevant to
discovery in the action and to report findings and make a recommendation
thereon." (Code Civ. Proc., § 639, subd.

(a)(5).) "When the referee is appointed pursuant to paragraph (5) of subdivision (a), the exceptional circumstances requiring the reference, which must be specific to the circumstances of the particular case" must be included in the court's written order. (Code Civ. Proc., § 639, subd. (d)(2).) "A discovery referee must not be appointed under Code of Civil Procedure section 639(a)(5) unless the exceptional circumstances of the particular case require the appointment." (Cal. Rules of Court, rule 3.920(c).)

After considering the parties' evidence and arguments presented in connection with this motion, the court finds that Plaintiffs have not met their burden to establish that exceptional circumstances of the particular case require the appointment of a discovery referee as required by Code of Civil Procedure section 639, subdivisions (a)(5) and (d)(2), and California Rules of Court, rule 3.920(c). The court therefore denies Plaintiffs' motion for appointment of discovery referee.

ORDER

The court denies Plaintiffs' motion for appointment of discovery referee.

The court orders defendant City of Los Angeles to give notice of this ruling.

IT IS SO ORDERED.

DATED: June 30, 2026

Robert
B. Broadbelt III

Judge
of the Superior Court